

Tentative Rulings for August 24, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2501271	PORTFOLIO RECOVERY ASSOCIATES, LLC VS THILL	MOTION TO SET ASIDE DEFAULT JUDGMENT

Tentative Ruling:

Motion filed by Defendant

No opposition. Motion **GRANTED**.

The court reviewed the exhibit attached to Defendant's declaration that on or about February 3, 2026, Plaintiff prepared a Motion to Dismiss the entire action, which Defendant relied upon.

Default judgment from 4/15/2026 is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVME2513682	TD BANK USA, N.A. VS ORSBORN	MOTION FOR ORDER TO DEEM MATTERS ADMITTED

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on 03/27/2026 are deemed admitted. Sanctions in the amount of \$60 filing fee, \$250 attorney fee for a total of \$310.00 to be paid by Defendant to the Plaintiff within 30 days of notice of this order. Plaintiff to prepare a proposed order consistent with this ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVME2514180	BANK OF AMERICA, N.A. VS ROE	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: This hearing was initially on calendar July 6, 2026 and the court continued the matter for a proper meet and confer required by CCP Section 439(a). Plaintiff was to prepare a Declaration stating efforts made to meet and confer and Plaintiff was to give notice. The court received the Plaintiff's Attorney's Declaration filed 8/10/2026 indicating a meet and confer has occurred. However, the court has no proof of service that Plaintiff has given notice to the Defendant regarding this hearing on August 24, 2026.

Motion for judgment on the pleadings is **DENIED**. Plaintiff has not complied with notice requirement. Mandatory Settlement Conference and Court trial remain on calendar for November 24, 2026, at 1:30 p.m., Dept. M205.